

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE TEMPORARY JUDGE

Unless the Court directs otherwise, appearances by counsel and parties in Department 38 may be made as follows:

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38:

[Court Calendars | Superior Court of California | County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 19, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

- | | |
|----------------------|---|
| 1.
9:00 AM | MSP14-01159 ESTATE OF DONALD LINZMEIER
HEARING IN RE: PETITION FOR FINAL DISTRIBUTION ON WAIVER OF ACCOUNTING & FOR ALLOWANCE OF STATUTORY COMMISSIONS FILED ON 9-3-25 BY DANIEL LINZMEIER

Petitioner still must do the following:

<ol style="list-style-type: none">1. Appear at the hearing2. File a verified declaration by petitioner to state why status report was not filed within 12 months as required by PrC § 12200(b)3. Verify petition under penalty of perjury. Petition is not signed.4. File a verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice. LR 7.1125. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice, including Michael Howard who requested special notice, and file a Proof of Service with court.6. File Proof of mailing Inventory and Appraisal to person requesting special notice. PrC § 88037. File a verified declaration with Creditor Claims fully listed in Petition including date filed. PrC § 10900; CRC § 7.4038. File a verified declaration by petitioner to state whether notice was given, or needed, to the Director of the California Victim Compensation Board, i.e., does petitioner have any reason to believe any heir <u>has previously been confined</u> in any prison or other correctional facility. PrC §§ 216, 9202(b)9. File a verified declaration to specify plan of distribution, including specific list of assets and amount of cash to be distributed to each heir. LR 7.30110. File a verified declaration to clarify whether a Federal estate tax return was filed11. Submit a proposed Order |
|----------------------|---|

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 19, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

2. 9:00 AM	MSP20-00388 ESTATE OF PETER ALDERS HEARING IN RE: PETITION FOR AN ORDER APPROVING SETTLEMENT AGREEMENT FILED BY YOUNG HEE LEE ON 08/12/2025 Need appearances to report status
----------------------	---

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 19, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

3. 9:00 AM	P23-01804 ESTATE OF: PATRICA CANSON HEARING IN RE: MOTION TO DISMISS FOR LACK OF STANDING AND TO APPOINT STEVEN SMITH AS EXECUTOR PER HIS PETITION FILED BY STEVEN A SMITH ON 01/02/2026 On the court's own motion, this matter is CONTINUED to September 10, 2026, at 9:00 a.m. No further briefing is authorized on this Motion. When to proceed, will Need: 1. Appearances 2. Proof of mailing to all persons entitled to receive notice. Notice filed 1-2-2026, reflects a hearing date of 2-5-2026; however, this motion was calendared for 5-19-2026. 3. Proposed Order Notes: 1. Defendant Aurin Canson's Opposition filed 1-23-2026. 2. Petition for Probate is set for continued hearing 6-23-2026. 3. Notice of Motion and Motion to Consolidate Coordinated Probate Matters filed by Trustee Donald Iwuchukwu 2-17-2026, is set for hearing 6-23-2026. 4. Notice of Motion and Motion for Summary Judgment filed by Steven A. Smith 2-20-2026, is set for hearing 6-23-2026.
----------------------	--

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 19, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

4. P23-02055 ESTATE OF: SUSAN LAPATING

9:00 AM

HEARING IN RE: FIRST AND FINAL REPORT OF ADMINISTRATOR AND PETITION FOR FINAL
DISTRIBUTION ON WAIVER ON ACCOUNT FILED BY NICHOLAS LAPATING ON 08/11/2025

Petition Approved
Proposed Order Submitted
No Appearance Required

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 19, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

5A.	P24-02188	MATTER OF: CALIFORNIA REVOCABLE LIVING TRUST OF PATRICIA BYRD CANSON, DATED FEBRUARY 28, 2017
9:00 AM	HEARING IN RE: PETITION: (1) DETERME NON-EXISTENCE OF TRUST; OR (2) TERMINATION; (3) COMPEL ACCOUNTING; (4) COMPEL PRODUCTION OF INFORMATION AND DOCUMENTS; (5) REMOVE TRUSTEE AND (6) ATTORNEYS FEES AND SANCTIONS FILED BY SHEILA WEBB ON 12/31/25	
On the court's own motion, this matter is CONTINUED to July 1, 2026, at 1:30 p.m. When to proceed, will Need: 1. Appearances 2. Verified declaration by petitioner to clarify current address of Paul Smith and Nicole Smith. Proof of Service attached to Notice of Hearing filed 4-17-2026 reflects mailing to them at addresses other than those listed in petition. 3. Verified declaration by petitioner to include current address of Sue Bochac or verified declaration by petitioner showing diligent efforts made to locate and serve her. CRC 7.52 Notes: 1. Opposition filed by Trustee Donald Iwuchukwu 2-2-2026. 2. Notice of Motion to Compel Completion of Deposition filed by Steven A. Smith 3-23-2026, is set for hearing 7-21-2026.		

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 19, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

**5B. P24-02188 MATTER OF: CALIFORNIA REVOCABLE LIVING TRUST OF PATRICIA BYRD
CANSON, DATED FEBRUARY 28, 2017**

9:00 AM HEARING IN RE: PETITION FOR ORDER DETERMINING EXISTENCE OF TRUST AND FOR ORDER
DETERMINING TITLE TO PROPERTY FILED BY DONAL IWUCHUKWU ON 12/12/24

On the court's own motion, this matter is CONTINUED to July 1, 2026, at 1:30 p.m.

When to proceed, Need:

1. Appearances
2. Proposed Order

Notes:

1. Respondent Steven A. Smith, Trustee, Opposition filed 12-12-2024.
2. Sheila Webb's Opposition filed 2-2-2026.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 19, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

7. **P25-00533** **ESTATE OF: MERRY SHIMAMURA**
9:00 AM HEARING IN RE: WAIVER OF ACCOUNTING AND PETITION FOR DISTRIBUTION AND FOR STATUTORY
FEES FILED BY DEBRA ASATO ON 01/05/26

Need:

1. Compliance with CRC 7.250 regarding any acts taken under IAEA w/notice of proposed action. (Specifics needed or statement that no action was taken)
2. Verified declaration by petitioner to include a specific list of assets on hand for distribution. Court must determine that assets listed in Inventory and Appraisal remain on hand. Court must confirm there were no losses on sale that should be included in statutory fee calculation.
3. Revised, proposed Order as needed in resolution of above and to include specific list of assets on hand for distribution. LR 7.101, 7.307

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 19, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

8. 9:00 AM	P25-01928 ESTATE OF: KWESI DODI HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH W/IAEA FILED BY KOFI AFARI DODI ON 10/29/2025
----------------------	--

Petition Approved
Proposed Order Submitted
No Appearance Required

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 19, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

9.	P25-02326	MATTER OF: THE VALERIA BELLE ANDERSON REVOCABLE LIVING TRUST DATED SEPTEMBER 19, 2021
9:00 AM	HEARING IN RE: PETITION FOR ORDER CONFIRMING TRANSFER OF TRUST ASSETS FILED 12/30/25 BY FRENCHCESCA ANNTIONETTE GARDNER AND KIMBERLY ALICIA GARDNER	
	Need appearances	
	Notes: 1. Trust does not include a schedule of assets. Trust at page 21 includes an Acknowledgment by notary from Virginia. Page 22 includes an Acknowledgment by a California notary. 2. Pour-Over Will at page 26 only has one witness. 3. Petition to Remove Trustees filed by Trayce Gardner 4-20-2026, is set for hearing 8-20-2026.	

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 19, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

**10. P25-02327 MATTER OF: THE JAMES J. WEYLAND REVOCABLE TRUST DATED 05/04/2005
UPDATED 03/06/2007 AND 02/24/2010**

9:00 AM HEARING IN RE: PETITION FOR ACCOUNTING FILED ON 12/31/25 BY JAMES P. WEYLAND

Need:

1. Petition verified. PrC § 1021. CCP § 2015.5. CRC 7.103
2. Verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice. LR 7.112
3. 30 days Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. PrC § 17203
4. Evidence of written demand for accounting as required by PrC §17200(b)(7), not attached as indicated.
5. Verified declaration by petitioner to include copies of all trust instruments
6. Proposed Order

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 19, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

11. P26-00015 MATTER OF: THE MARY L. WAINWRIGHT REVOCABLE TRUST FBO JONATHAN WAINWRIGHT

9:00 AM HEARING IN RE: PETITION TO MODIFY SUB-TRUST TERMS FILED ON 01/05/26 BY FRANK WAINWRIGHT

Need:

1. Appearances
2. Proposed Order

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 19, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

12.	P26-00019	MATTER OF: THE 1995 WALLACE R. LONSWAY AND ENES M. LONSWAY REVOCABLE TRUST, UNDER INSTRUMENT DATED MARCH 15, 1995
9:00 AM	HEARING IN RE: PETITION FOR ORDER CONFIRMING TRUST ASSETS FILED ON 01/06/26 BY SABRINA G. MARIANI AND ALICIA POPINO	
Need: 30 days Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice or waivers of notice. (Have 29) PrC § 17203		

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 19, 2026
DEPARTMENT 38
JUDICIAL OFFICER: JON R. VAUGHT

13. 9:00 AM	P26-00024 HEARING IN RE: PETITION FOR INSTRUCTION FILED ON 01/07/26 BY RONALD J. QUINN	MATTER OF: THE TRUST OF LAWRENCE C. NEFF DATED JANUARY 31, 2001
-----------------------	--	--

Need appearances